

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Wall	Team: Squad #09	CCRB Case #: 202200476	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/11/2022 7:20 PM	Location of Incident: the City Point BKLYN Mall at 445 Albee Square in Brooklyn	18 Mo. SOL 7/11/2023	Precinct: 84		
Date/Time CV Reported Thu, 01/13/2022 8:12 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/25/2022 10:54 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Marcarthur Jean	30935	965219	PSA 1

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Korben Folk	08127	963521	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean threatened § 87(2)(b) with the use of force.	
B . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean threatened to arrest An Individual.	
C . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean refused to provide his name to § 87(2)(b)	
D . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean refused to provide his shield number to § 87(2)(b)	
E . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean threatened § 87(2)(b) with the use of force.	
F . PO Marcarthur Jean	Force: Police Officer Marcarthur Jean used physical force against § 87(2)(b)	
G . PO Marcarthur Jean	Discourtesy: Police Officer Marcarthur Jean acted discourteously toward § 87(2)(b)	
H . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean threatened to arrest § 87(2)(b)	
I . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean threatened § 87(2)(b) with the use of force.	
J . PO Marcarthur Jean	Abuse: Police Officer Marcarthur Jean made a sexually suggestive remark to § 87(2)(b)	
K . PO Marcarthur Jean	Discourtesy: Police Officer Marcarthur Jean spoke discourteously to § 87(2)(b)	

Case Summary

On January 13, 2022, § 87(2)(b) filed this complaint via telephone with IAB.

On January 11, 2022, at approximately 7:20 PM, PO Marc Arthur Jean, of PSA 1, and PO Korben Folk, of the 78th Precinct, followed § 87(2)(b) outside the City Point BKLYN Mall at 445 Albee Square in Brooklyn. When § 87(2)(b) attempted to return into the mall, PO Jean brandished his ASP baton and threatened to hit § 87(2)(b) with it if he tried to return to the mall (**Allegation A – Abuse of Authority: Threat of Force**, § 87(2)(g)). This confrontation began to attract onlookers, resulting in an unidentified male filming the incident on his phone. PO Jean allegedly threatened to arrest this individual (**Allegation B – Abuse of Authority: Threat of Arrest**, § 87(2)(g)). After a few minutes, PO Jean and PO Folk returned into the mall.

§ 87(2)(b) then went into the mall and attempted to return to the Target, the store inside the mall where the interaction began, to get PO Jean’s identifying information to report him. When he ascended the escalator inside the mall, § 87(2)(b) found PO Jean waiting at the top. § 87(2)(b) asked PO Jean for his name and shield number, but PO Jean allegedly did not give him the information (**Allegation C – Abuse of Authority: Refusal to provide name**, § 87(2)(g)). § 87(2)(b) (**Allegation D – Abuse of Authority: Refusal to provide shield number**, § 87(2)(g)). Instead, he allegedly threatened § 87(2)(b) with his pepper spray (**Allegation E – Abuse of Authority: Threat of Force**, § 87(2)(g)). § 87(2)(b) told PO Jean he would not leave until he received PO Jean’s name and shield. PO Jean then grabbed § 87(2)(b) by the back of his coat and attempted to pull him out of the mall (**Allegation F – Force: Physical Force**, § 87(2)(g)). § 87(2)(b) was able to break from PO Jean’s grasp and attempted to return to the Target. PO Jean stepped in front of § 87(2)(b) and began poking him in the chest with his index finger about five times and allegedly told him that he would be arrested if he did not leave the mall (**Allegation G – Discourtesy: Action**, § 87(2)(g)). § 87(2)(b) (**Allegation H – Abuse of Authority: Threat of Arrest**, § 87(2)(g)). § 87(2)(b) then decided to leave the mall.

PO Jean allegedly followed § 87(2)(b) down the escalator and told him, “I’ll beat you up. I’ll whoop your ass. All y’all men like going to jail to get your butt eaten,” (**Allegations I – Abuse of Authority: Threat of Force**, § 87(2)(g)). § 87(2)(b) (**Allegation J: Sex Miscon - Sexual Harassment: Verbal**, § 87(2)(g)). § 87(2)(b) (**Allegation K: Discourtesy: Word**, § 87(2)(g)). § 87(2)(b) then left the mall without further incident.

The investigation received one security video of this incident from Target depicting the area immediately outside the Target main entrance near the top of the second-floor escalators inside City Point BKLYN Mall [01 Board Review] [11 Board Review].

Findings and Recommendations

Allegation (A) Abuse of Authority: PO Marcarthur Jean threatened § 87(2)(b) with the use of force.

It is undisputed that PO Jean was working as a paid detail officer in uniform for Target on January 11, 2022. It is also undisputed that § 87(2)(b) complied with officer instructions to leave the Target after being told, at most, two times. It is undisputed that after § 87(2)(b) exited the Target, PO Jean brandished his baton.

PO Jean’s paid detail slip, attached to his memo book, shows the company which contracted him as “Target” [02 Board Review]. PO Jean’s assignment, according to the paid detail slip, is listed as “asset protection”.

In his CCRB interview, § 87(2)(b) stated that as he was leaving Target PO Jean mumbled something under his breath [03 Board Review]. When § 87(2)(b) asked him what he had said, PO Jean replied saying, “You know what I said.” PO Jean and PO Folk then approached § 87(2)(b) and told him, “All y’all be acting tough.” § 87(2)(b) then left Target and moved to leave the mall. PO Jean and PO Folk followed § 87(2)(b) out of Target and down the escalators of the City Point BRKLYN Mall. As the officers followed § 87(2)(b) PO Jean would say to him repeatedly, “You’re just trying to get a lawsuit, aren’t you?” § 87(2)(b) was confused by this but exited the

building. The officers followed § 87(2)(b) out of the mall.

§ 87(2)(b) added that once he was outside the mall, he decided he wanted to return to the Target to get PO Jean's name and shield number so he could report him for his behavior. As he attempted to return to the mall, PO Jean brandished his ASP baton and told § 87(2)(b) that he could not return to the mall. PO Jean told § 87(2)(b) "I'll beat you up, I'll hit you with this," referring to his baton [03 Board Review].

In his CCRB interview, PO Jean stated the paid detail program allows private businesses to contract NYPD officers to maintain a foot presence within the store to deter crime [04 Board Review]. An officer on paid detail may still exercise his or her authority as an NYPD officer but are classified as off-duty by the NYPD and are paid by the private business that contracts them. PO Jean did not wear a body worn camera (BWC) as it is not required for paid detail officers.

PO Jean stated that he was working a paid detail shift at Target when he overheard several Target team members arguing loudly with § 87(2)(b). PO Jean was not called for support by the Target team, and so he did not leave his post near the entrance/exit of the Target. After the argument ended, § 87(2)(b) approached the Target exit. On his way out, § 87(2)(b) saw PO Jean and began to curse at him. PO Jean had no prior interaction with § 87(2)(b) and had not said anything to him as he approached the store exit. § 87(2)(b) did not leave the store and instead continued to curse at PO Jean. PO Jean told § 87(2)(b) to leave the store twice during this interaction, which § 87(2)(b) did upon the second time of being told. § 87(2)(b) continued to yell and curse at PO Jean as he left the store [04 Board Review].

PO Jean stated that § 87(2)(b) continued to make a scene outside Target, continuing to yell and curse at PO Jean. PO Jean then told § 87(2)(b) to leave the mall. § 87(2)(b) became very aggressive following this and told PO Jean to follow him downstairs and "spin the block." PO Jean interpreted this as § 87(2)(b) demanding PO Jean follow him outside to fight. PO Jean followed § 87(2)(b) to the ground floor but did not follow him outside the mall. When § 87(2)(b) left the mall, PO Jean returned to the second floor [04 Board Review].

PO Jean stated that § 87(2)(b) quickly returned to the mall and followed PO Jean to the second floor, continuing to curse at him and reiterating his desire to fight PO Jean. While arguing with § 87(2)(b) PO Jean brandished his ASP baton. PO Jean did not make any verbal threats that he would use the baton. PO Jean brandished his baton to use the minimal force possible in order to remove § 87(2)(b) from the premises [04 Board Review].

In his CCRB interview, PO Folk stated he was off duty, not in uniform, and working for a third-party security service hired by Target [05 Board Review]. Target's policy for officers working paid detail is to maintain a visual presence in the store. Paid detail officers are not permitted to detain individuals unless the individual in question has multiple outstanding criminal complaints against them. While an individual could be detained by a paid detail officer, that authority extends only to the entrance of the Target. Once outside the Target, § 87(2)(b) would have been allowed to remain in the mall until mall security deemed it necessary to remove him.

PO Folk stated that at the time of the incident, he was called to the Target customer service area by Target staff to help deal with an unruly customer, § 87(2)(b) who had been flagged for making fraudulent purchases and needed to be escorted out of the store. § 87(2)(b) continued to curse out Target staff, calling them "bitches", and said to PO Folk that he was "a Chinese motherfucker." § 87(2)(b) then directed his ire towards PO Jean, demanding he "go outside" to fight [05 Board Review].

PO Folk stated that § 87(2)(b) initially left the store, but he walked back towards the store before being confronted by PO Folk and PO Jean. After, § 87(2)(b) stepped away from the store and went down the mall escalators to the ground floor. PO Jean and PO Folk followed § 87(2)(b) to ensure that he would leave the mall. § 87(2)(b) continued to be belligerent as he went down the escalators, continuing to demand PO Jean follow him outside to fight. PO Jean and PO Folk escorted § 87(2)(b) to the ground floor and out of the mall [05 Board Review].

PO Folk also stated that once outside the mall, § 87(2)(b) continued threatening and

antagonizing the officers, who continued to command § 87(2)(b) to leave the area. During this interaction, PO Jean brandished his ASP baton. PO Jean did not issue a verbal warning that he would use his baton. At that point, § 87(2)(b) appeared to have lost interest in returning to the mall, so the officers returned to Target [05 Board Review].

Target security footage obtained by the investigation captures the parties' initial interaction in front of Target, the parties all go down the escalator, and the parties return. At the time the parties return, 3:55, PO Jean is not depicted brandishing his ASP baton at any point [01 Board Review].

Given that PO Folk corroborated § 87(2)(b) account that PO Jean brandished his baton on the ground floor of the store and the Target video footage is contrary to PO Jean's account that he did so at the top of the escalator, the investigation is crediting that PO Jean brandished his asp at the ground floor of the mall.

According to *FINEST Message #BM 258 (06-16): Paid Detail Memo*, all paid detail police officers are considered off-duty, acting as private contractors [06 Board Review]. All officers will report in full uniform to the location designated by the vendor for check-in and assignment. All police officers carry with them full law enforcement powers and are expected to perform police related duties only. They do not carry or issue summonses. They are subject to NYPD rules, regulations, and standards of conduct at all times. Officers encountering arrest situations will call for an on-duty supervisor or paid detail supervisor to determine the course of action.

Patrol Guide Procedure 221-02 [10 Board Review] establishes that the purpose for using force is to protect life and personal safety of all persons present. Officers must utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force

At the time PO Jean brandished his ASP baton, § 87(2)(b) had complied with instructions to exit Target and was on a different floor of the mall. § 87(2)(g)

§ 87(2)(g) The officers were not employed to force § 87(2)(b) out of the mall.

§ 87(2)(g)

Allegation (B) Abuse of Authority: PO Marcarthur Jean threatened to arrest An Individual.

In his CCRB statement, while § 87(2)(b) was outside the mall, he attempted to call his wife to let her know what was going on [03 Board Review]. While on the phone with his wife, § 87(2)(b) took note of a crowd gathering to watch the incident that was unfolding. Of the individuals in the crowd, one young man was in his car recording. PO Jean was angered by this and told this individual, "You wanna keep recording, you can go to jail too." Following this, PO Jean returned into the mall. § 87(2)(b) did not know the individual and could not identify him.

In his CCRB statement, PO Jean recalled a crowd gather after he brandished his baton to deter § 87(2)(b) from entering Target inside the mall [04 Board Review]. PO Jean believed that § 87(2)(b) had a friend in the crowd who began to record the incident in an effort to draw a lawsuit. PO Jean told this individual that he was "just trying to get a lawsuit." PO Jean did not threaten to arrest this individual at any point.

In his CCRB statement, PO Folk did not recall any crowd gathering to witness this incident [05 Board Review]. Further, PO Folk did not recall if PO Jean threatened to arrest any onlookers who may have gathered to witness the incident [05 Board Review].

This portion of the incident did not appear in the security video provided by Target [01 Board Review].

Although both § 87(2)(b) and PO Jean recalled a crowd gathering and a particular individual attempting to record the incident, the circumstances of their recollections differ on what PO Jean said to the individual. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (C) Abuse of Authority: PO Marcarthur Jean refused to provide his name to

§ 87(2)(b)

Allegation (D) Abuse of Authority: PO Marcarthur Jean refused to provide his shield to

§ 87(2)(b)

Allegation (E) Abuse of Authority: PO Marcarthur Jean threatened § 87(2)(b) with the use of force.

In his CCRB interview, § 87(2)(b) stated that he returned into the mall after exiting to get PO Jean's name and shield number. § 87(2)(b) wished to avoid further confrontation with PO Jean, and so, he left an escalator's length between them when he went up to the second floor. However, when § 87(2)(b) reached the top of the escalators, he found PO Jean waiting there for him. § 87(2)(b) then asked PO Jean for his name and shield number, but PO Jean simply removed his face mask and said, "This is how I look." After saying this, PO Jean then brandished his pepper spray [03 Board Review].

In his CCRB interview, PO Jean stated that § 87(2)(b) did not ask him for his name or shield number at any point during this incident. PO Jean did not brandish his pepper spray at any point during the incident. PO Jean did not threaten to pepper spray § 87(2)(b) at any point during this incident [04 Board Review].

In his CCRB interview, PO Folk stated that he did not witness § 87(2)(b) ask PO Jean for his name or shield number [05 Board Review]. PO Folk did not witness PO Jean brandish his pepper spray at any point during this incident. PO Folk did not witness PO Jean threaten to pepper spray § 87(2)(b) at any point.

Target security footage, from the 00:17 second mark to the 04:35 minute mark, depicts this portion of the incident as described by § 87(2)(b) [01 Board Review]. This video is in color but without sound. § 87(2)(b) first exits Target at the 00:17 second mark of this security video. PO Jean and PO Folk appear in the video shortly after as they exit and follow § 87(2)(b). At the 00:40 second mark of the same video, § 87(2)(b) goes down the escalators followed by PO Jean and PO Folk. When § 87(2)(b) and the officers descend the escalators, PO Jean's mask is still up. PO Jean and PO Folk reappear at the 03:56 minute mark of the same video. At this point in the video, PO Jean's mask is already down. At the 04:02 minute mark of the same video, § 87(2)(b) returns to the second floor coming up the escalators. PO Jean approaches § 87(2)(b) and gets close to him. PO Jean appears to gesticulate at § 87(2)(b) until § 87(2)(b) steps to the far right of frame, standing behind a wall obstructing the security camera's view of the incident. At no point does PO Jean appear to brandish his pepper spray.

§ 87(2)(b) alleged to have asked PO Jean for his name and shield number after re-ascending the escalators to find PO Jean waiting for him at the top, which PO Jean denies. However, as the video is without sound, there is no audio evidence proving or disproving the allegation that § 87(2)(b) asked PO Jean for his name and shield number and PO Jean refused to provide the information. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The Target security footage depicts the portion of the incident in which § 87(2)(b) alleged PO Jean brandished his pepper spray but does not show PO Jean brandish his pepper spray.

Allegation (F) Force: PO Marcarthur Jean used physical force against § 87(2)(b)

Allegation (G) Discourtesy: PO Marcarthur Jean acted discourteously toward § 87(2)(b)

Allegation (H) Abuse of Authority: PO Marcarthur Jean threatened to arrest § 87(2)(b)

Allegation (I) Abuse of Authority: PO Marcarthur Jean threatened § 87(2)(b) with the use of force.

Allegation (J) Abuse of Authority: PO Marcarthur Jean made a sexually suggestive remark to § 87(2)(b)

Allegation (K) Abuse of Authority: PO Marcarthur Jean spoke discourteously to § 87(2)(b)

In his CCRB interview, § 87(2)(b) stated that after PO Jean threatened him with pepper spray, he told him he could not be inside the mall [02 Board Review]. When § 87(2)(b) told PO Jean he would not leave until PO Jean told him his name and shield number, PO Jean grabbed him by the back of his coat and attempted to pull him out of the mall. § 87(2)(b) was able to break away from PO Jean's grip and tried to make his way towards the Target to complain about PO Jean. When § 87(2)(b) broke free from PO Jean's grip, PO Jean moved to step in front of him, cutting him off as he made his way towards the Target. PO Jean then proceeded to poke § 87(2)(b) in the chest with his index finger and told him that he would be arrested if he did not leave the mall. § 87(2)(b) then decided to leave the mall. As he descended the escalator, PO Jean followed him and spoke belligerently to him, saying, "I'll beat you up, I'll whoop your ass. All y'all men like going to jail to get your butt eaten." § 87(2)(b) then left the mall and went home.

In his CCRB interview, PO Jean stated that he backed away from § 87(2)(b) when he noticed that an individual in the crowd was trying to film the incident [03 Board Review]. However, § 87(2)(b) did not go back downstairs. When PO Jean noticed that § 87(2)(b) was still on the mall's second floor, PO Jean approached him again and told him to leave. § 87(2)(b) continued to act aggressively, removing his jacket to fight PO Jean. PO Jean then pushed § 87(2)(b) twice in quick succession so to use the minimal amount of force in order to get § 87(2)(b) to comply with his orders. PO Jean then placed his hand on § 87(2)(b) back and pushed him again towards the down escalators so to escort him out of the mall. § 87(2)(b) did not return to the mall following this interaction.

PO Jean did not recall poking § 87(2)(b) in the chest with the index finger. PO Jean did not recall threatening to arrest § 87(2)(b) at any point. PO Jean did not recall saying to § 87(2)(b) "I'll whoop your ass." PO Jean did not say to § 87(2)(b) "all y'all men like going to jail to get your butt eaten," at any point. PO Jean did not make any reference to § 87(2)(b) sexuality or sexual preferences at any point during this incident [03 Board Review].

In his CCRB interview, PO Folk stated that § 87(2)(b) continued to antagonize PO Jean upon returning to the second floor of the mall. § 87(2)(b) gestured towards PO Jean with his hand in the shape of a gun, saying "I'm gonna get you." PO Jean then pushed § 87(2)(b) before grabbing him and escorting him down the escalators and out of the mall. § 87(2)(b) did not return to the mall following this interaction [04 Board Review].

PO Folk did not witness PO Jean poke § 87(2)(b) in the chest with his index finger. PO Folk did not witness PO Jean threaten to arrest § 87(2)(b). PO Folk did not witness PO Jean say to § 87(2)(b) "I'll whoop your ass." PO Folk did not witness PO Jean say to § 87(2)(b) "all y'all men like going to jail to get your butt eaten." PO Folk did not witness PO Jean say anything to § 87(2)(b) of a sexual nature or referencing his sexuality at any point during this incident [04 Board Review].

Target security footage depicts this portion of the incident from the 03:55 minute mark to the 06:30 minute mark [01 Board Review]. At 3:55, PO Jean and PO Folk arrive to the second floor in front of Target, followed shortly by § 87(2)(b) has his jacket in his hand, and

Board Review].

duty supervisor or paid detail supervisor to determine the course of action [06 Board Review].

force [10 Board Review].

Jean pushes § 87(2)(b) as he walks in the direction opposite of the Target entrance. § 87(2)(g)

§ 87(2)(g)

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Marc Arthur Jean has been a member of service for four years and has been a subject in one other CCRB complaint and three other allegations, none of which were substantiated.
§ 87(2)(g) [REDACTED]
[REDACTED]

[illegible]

Reviewer: _____

Signature	Print Title & Name	Date
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